

IN THE CIRCUIT COURT OF BENTON COUNTY, MISSOURI

NSI 6, LLC,

Plaintiff,

v.

Case No. 26BE-CC00056

BENTON COUNTY, MISSOURI,

STEVE DALESKE, in his official capacity
as Presiding Commissioner of
Benton County, Missouri,

SCOTT HARMS, in his official capacity as
North Side District Commissioner of
Benton County, Missouri, and

LARRY BERRY, in his official capacity as
South Side District Commissioner of
Benton County, Missouri,

Defendants.

AFFIDAVIT REGARDING NOTICE

I, Megan N. C. Russell, a member of the bar of the State of Missouri, attorney for Plaintiff, and authorized to appear before this Court, pursuant to Rule 92.02(a) certify as follows:

1. On the 27th day of August, 2026 at 8:46 a.m. Central Time, I spoke by telephone with Brad Votaw, an appointed special process server in this case, who advised me he had served Steve Daleske, Presiding Commissioner, who accepted service for all four summonses in this case.

2. Additionally, on the 27th day of August, 2026, at 4:35 p.m. Central Time, I received an email from Paige Parrack of the law firm of Ellis, Ellis, Hammons & Johnson, P.C., who advised me that her firm will be representing the Defendants herein and acknowledged the hearing on the Motion for Temporary Restraining Order set for Wednesday, September 2, 2026 at 1:00 p.m.

3. I have caused a copy of the Petition, Motion for a Temporary Restraining Order, Temporary Restraining Order, and Memorandum of Points and Authorities to be served upon the Defendants twenty-four (24) hours prior to appearing in this Court and Defendants and their Counsel are aware of the date and time set for the hearing on the Motion for Temporary Restraining Order.

LOWTHER JOHNSON
Attorneys at Law, LLC

By: /s/ Megan N. C. Russell

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Attorneys for Plaintiff



Megan N. C. Russell

STATE OF MISSOURI)
) ss.
COUNTY OF GREENE)

The undersigned, Megan N. C. Russell, of lawful age and being first duly sworn upon her oath, and having reviewed the foregoing pleading, states that the facts stated therein are true and correct to her best information, knowledge, and belief.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal
this 28th day of August, 2026.



Florence Matney, Notary Public

My Commission Expires: July 18, 2030

